

United States District Court for the Northern District of West Virginia

Asterglen Freight Software, Inc. v. Copper Kestrel Logistics, LLC and Meridian Silt Holdings, LLC

Asterglen Rule 54(b) Motion and Memorandum

Civil Action No. SYN-NDWV-25-CV-0618 District ECF No. 57 — Filed January 20, 2026

Plaintiff Asterglen Freight Software, Inc. moves under Federal Rule of Civil Procedure 54(b) for entry of final judgment on Count I of the Complaint. The Court's January 12, 2026 memorandum opinion and order granted Copper Kestrel Logistics, LLC summary judgment on that count and dismissed it with prejudice. Count I sought \$480,000 for alleged breach of the Pilot License. The ruling ended that claim in this Court, although Count II against Meridian Silt Holdings, LLC and Copper Kestrel's amended counterclaim remain pending.

Asterglen asks the Court to make an express determination that there is no just reason for delay and to direct entry of a separate judgment limited to Count I. Immediate review would settle whether Asterglen may recover on its claim that Copper deployed BeaconRoute beyond the written license when Asterglen terminated the Pilot License and demanded breach damages on July 22, 2024 without first providing the notice and fifteen-calendar-day cure opportunity stated in Section 9.2. That legal issue controls Asterglen's dismissed contract claim and has consequences for the parties' continuing preparation of the unresolved claims.

The grounds for this motion are developed below. Asterglen does not ask the Court to adjudicate Count II or the amended counterclaim, stay proceedings automatically, or revise the January 12 merits ruling. A proposed partial judgment is tendered for the Court's consideration.

I. Procedural posture and governing standard

The Complaint contains two claims arising from the parties' 2024 BeaconRoute deployment. Count I alleges that Copper breached the Pilot License by using Asterglen's platform beyond the licensed scope, and Asterglen seeks \$480,000. Copper responds that Asterglen could not terminate and demand breach damages without honoring Section 9.2. Count II alleges that Meridian interfered with Asterglen's contractual relationship and seeks \$360,000. Copper's amended counterclaim seeks \$120,000 on a cure, performance, and offset theory. The January 12 order resolved only Count I. It did not enter judgment on Count II or the counterclaim, both of which remain active.

Rule 54(b) applies when an action presents more than one claim and the Court has finally disposed of at least one, but fewer than all, claims. The Court must first identify an ultimate disposition of an individual claim. It must then determine expressly whether there is any just reason to postpone judgment, considering sound judicial administration and the equities. Certification is the exception rather than the ordinary course, and the moving party bears the burden of showing that the case warrants it.

The relevant considerations identified in *Kinsale Insurance Co. v. JDBC Holdings, Inc.*, 31 F.4th 870, 873–76 (4th Cir. 2022), include the relationship between adjudicated and unadjudicated claims, the possibility that later district-court developments could moot appellate review, the risk that the court of appeals would confront the same issue more than once, the presence of a claim or counterclaim that could create a setoff, and other practical circumstances. Asterglen addresses those considerations rather than relying only on the fact that Count I was dismissed with prejudice. A separate judgment by itself would record the disposition; the requested express determination is independently necessary to make the partial disposition appealable under this route.

II. Count I received an ultimate disposition

The January 12 order left nothing for this Court to decide on Count I. Copper sought partial summary judgment on Asterglen's contract claim, the parties submitted a developed written record, and the Court granted Copper's motion as to that claim. The decretal language dismissed Count I with prejudice. Asterglen therefore cannot obtain additional district-court relief on Count I absent revision of the ruling or appellate relief. This is not an interlocutory decision that merely narrows a theory, excludes one item of evidence, or resolves fewer than all requested remedies within a continuing claim.

Count I also has a defined source and remedy. It rests on the April 15, 2024 Pilot License and alleges that Copper used BeaconRoute beyond the agreed scope. Asterglen's July 22 termination and \$480,000 demand triggered Copper's Section 9.2 defense. The dispute concerns whether the written-notice and cure language conditioned the remedies Asterglen selected and whether the parties' course of performance altered that obligation. The Court's ruling rejected Asterglen's contract recovery against Copper. Count II, by contrast, seeks recovery from Meridian for alleged interference. Copper's amended counterclaim seeks \$120,000 from Asterglen.

Asterglen recognizes that separate legal labels do not end the Rule 54(b) inquiry. Some evidence appears across the claims, including the 41 provisioned identifiers, the disputed July 8 oral-permission account, the July 18 audit, and work continuing through July 25. That overlap belongs in the second step. It does not change the procedural fact that the January 12 order conclusively disposed of the entire contract count against Copper.

III. Asterglen contends that delay is not justified

The dismissed count presents a focused contract question concerning Section 9.2. The remaining interference claim will require proof of Meridian's knowledge, purpose, conduct, and resulting harm. Copper's amended counterclaim will require proof of its claimed \$120,000 loss and its cure or offset theory. Although the three claims share portions of the deployment chronology, an appeal from Count I can be confined to the license language, Asterglen's termination sequence, and the summary-judgment record bearing on Asterglen's attempt to recover without a cure period.

Later proceedings are unlikely to restore Count I without appellate review. A verdict on Meridian's conduct would not alter the dismissal of Asterglen's contract claim against Copper. Resolution of Copper's counterclaim likewise would not decide whether Asterglen may recover its separate \$480,000 demand. The parties therefore face a completed ruling whose legal effect will persist while the remaining litigation proceeds.

Asterglen acknowledges the possible setoff concern. Copper alleges \$120,000, and a later recovery on that counterclaim could affect the net financial relationship between Copper and Asterglen. But the existence or amount of a possible offset would not determine liability on the dismissed claim. If Count I is restored, any ultimately established offset can be accounted for in further proceedings. In Asterglen's view, that possibility does not require withholding judgment now. The Court can reduce duplication by defining the certified claim precisely and by making clear that unresolved damages, interference, and counterclaim issues remain outside the partial judgment.

IV. Judicial administration and the equities favor a defined judgment

The requested certification would place one completed ruling before the court of appeals while this Court retains the other claims. Asterglen does not seek review of every factual disagreement in the deployment. It would identify whether the grant of summary judgment on Count I can stand under the Pilot License's notice-and-cure language and the record concerning Asterglen's July 22 action. A confined appellate decision could clarify the legal framework for the parties without requiring review of a future Meridian verdict or a future counterclaim judgment.

Asterglen also has an interest in obtaining review of a claim dismissed with prejudice before devoting further resources to claims that involve related transactions but different elements and parties. The requested judgment would not suspend the district proceedings by its own force. Any stay would require a separate request and ruling. The Court may continue case management of Count II and the amended counterclaim while an appeal proceeds, or it may enter an appropriate scheduling order based on circumstances then presented.

The alternative statutory routes do not eliminate the Rule 54(b) question. This action does not involve an injunction ruling made immediately appealable by 28 U.S.C. § 1292(a)(1), and Asterglen is not asking the Court to certify a controlling question under § 1292(b). The present request addresses a claim that the Court has already dismissed with prejudice. Asterglen therefore asks the Court to use Rule 54(b)'s claim-specific mechanism, state its determination expressly, and direct a judgment that neither expands nor obscures the January 12 disposition.

V. Requested terms and conclusion

Asterglen respectfully requests an order that identifies Count I as finally disposed of, determines expressly that there is no just reason for delay, and directs the Clerk to enter a separate judgment dismissing Count I with prejudice in favor of Copper. The order should state that Count II against Meridian and Copper's amended counterclaim against Asterglen remain pending. That limitation will preserve the distinction between the completed claim and the continuing claims and will give the court of appeals a clear jurisdictional record.

Asterglen further requests that the Court leave all other scheduling matters for a separate order. Certification should not be understood as a merits ruling on Meridian's liability, Copper's claimed \$120,000, any eventual offset, or any disputed fact not necessary to the January 12 decision. Nor should entry of partial judgment be treated as an automatic stay. These express boundaries will permit the parties and both courts to identify exactly what has and has not been decided.

For those reasons, Asterglen asks the Court to grant this motion and enter the requested findings and direction under Rule 54(b).

Respectfully submitted, Counsel for Asterglen Freight Software, Inc.

Certificate of service

I certify that on January 20, 2026, this motion and memorandum were filed through the Court's electronic filing system and served electronically on counsel of record for Copper Kestrel Logistics, LLC and Meridian Silt Holdings, LLC. The filing includes no sealed material, and no paper service was required.